

CO1-ASSESSMENT 3

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Course code : ITA-1407

Course : Ethical Hacking

Date : 30-7-2026

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A Client terminates your penetration testing contract mid engagement due to a business dispute, but you still have active reverse shells and access credentials on their systems. Explain, step by step, what legal and ethical actions you must take immediately.

Ans:

Scenario:

A client terminates a penetrating testing contract in the middle of an engagement due to a business dispute. However, the ethical hacker still has active reverse shells, administrator credentials and remote access to the client's systems. Once the contract is terminated, the authorization to access those system ends immediately. Continuing to access the system after termination could be considered unauthorized and may result in legal consequences. Therefore, the ethical hacker, must follow the following steps:-

Step I: Stop all testing immediately.

The first action is to stop all penetration testing activities. No further scanning, exploitation, vulnerability testing or data collection should be performed because the legal authentication to conduct the assesment has been revoked.

Step 2: Remove all active access:

Immediately disconnect and remove all activities, reverse shells, remote sessions, temporary user accounts, scripts, or tools installed during testing. Ensure that no unauthorized access remains on the client's systems.

Step 3: Delete or return access credentials:

Securely delete or return all credentials provided by the client, including usernames, passwords, SSH keys, VPN credentials, and API tokens. The ethical hacker should not keep copies of these credentials after the engagement ends unless required by law or contract.

Step 4: Notify the client:

Send written confirmation to the client that all testing has stopped, all access has been removed, and all credentials have been deleted or returned. This provides clear evidence that the ethical hacker has complied with the contract termination.

Step 5: Protect confidential information:

Any sensitive information obtained during the engagement must remain confidential. The ethical hacker must continue to follow the Non-Disclosure agreement (NDA) by not sharing, using, or disclosing client data even after the contractor has ended.

Step 6: Document all actions:

Maintain detailed records of the termination process, including the time contract ended, when access was removed, and copies of communication with the client. Proper documentation can serve as evidence if any legal disputes arise later.

Step 7: Submit a final report:

If allowed under the contract or requested by the client, provide a final report containing the vulnerabilities identified before the termination. However, no additional testing or system access should occur unless a new written authorization is provided.

Conclusion:

When a penetration testing contract is terminated, the ethical hacker's legal authorization ends immediately. The tester must stop all testing, remove all active access, delete or return credentials, protect confidential information, notify the client, and document every action taken. Following these legal and ethical steps ensures compliance with professional standards, prevents

unauthorized access and protects both the ethical hacker and the client from legal and security risks.